

1.

CASE #	CASE NAME	HEARING NAME
CVPS2402431	RADOFF VS LOPEZ	PLAINTIFFS' MOTION TO COMPEL PMQ DEPOSITION OF DEFENDANT COUNTY AND RESPONSIVE DOCUMENTS

Tentative Ruling:

The Court regrets that it does not have a tentative ruling on the motion. Counsel shall appear (in person or remotely, as they prefer) and be prepared for argument.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404900	DAVIS VS BARNES	MOTION TO COMPEL

Tentative Ruling:

The plaintiff's unopposed motion to compel responses to form interrogatories is granted. No later than July 17, 2026, the defendant shall serve complete answers without objection to the first set of form interrogatories.

Sanctions are imposed on defendant Eric Barnes in the sum of \$1,360, payable to plaintiff's counsel forthwith.

Plaintiff's counsel and defense counsel shall appear on July 24, 2026, at 11:00 A.M. in Department 5 and show cause, if any, why sanctions of up to \$1,500 should not be imposed on both of them for the failure to comply with the Court's order of 5-18-26 to meet and confer.

Analysis:

The hearing on the plaintiff's motion to compel was continued from 5-18-26 to 6-22-2026. At the same time, the parties were ordered to meet and confer "in person, by telephone, or via visual conferencing" in an effort to resolve their discovery dispute. The plaintiff's counsel was ordered to file a declaration "addressing the parties' efforts to meet and confer."

According to plaintiff's counsel's declaration, no such conference ever occurred. No one ever picked up a phone. Defense counsel indicated by email that he could meet most afternoons, and plaintiff's counsel suggested by email that they meet that afternoon. Defense counsel never responded, and plaintiff's counsel did not inquire further.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406332	OWENS VS BOMBARDIER RECREATIONAL PRODUCTS INC.	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling:

The plaintiff's motion for relief from dismissal is granted. The dismissal filed 3-2-26 is vacated.

All parties and their attorneys of record are ordered to appear on 8-24-26 at 8:30 A.M. in Department 5 to show cause, if any, why the action should not be dismissed pursuant to the 2025 settlement.

If the case has not been voluntarily dismissed prior to that date, then plaintiff's counsel shall file both a declaration in response to the OSC and a motion for determination of attorney's fees not later than 8-17-26.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502987	WHITELEY VS HARLEY- DAVIDSON MOTOR COMPANY, INC.	MOTION TO COMPEL MOTION TO (1) COMPEL PLAINTIFF'S DEPOSITION AND (2) STAY OTHER DEPOSITIONS PENDING COMPLETION OF PLAINTIFF'S DEPOSITION

Tentative Ruling:

The defendants' request for judicial notice is denied.

The supplemental declaration of Smock, filed with the defendants' reply, is not considered.

The defendants' motion to compel is granted in part and denied in part. Specifically, their request for an order requiring Plaintiff to appear for her deposition within two weeks of the Court's Order is denied.

The defendants' request for an order staying all other depositions in this action pending the completion of Plaintiff's deposition is denied.

The defendants' request for an order awarding Defendants their reasonable costs of \$2,910.50 to bring this motion is granted.